EU MERGER CONTROL

Historical regulatory intelligence · 1990–2026

Core Merger Cases

10,376

Historical records

Phase II Initiation

3.09%

309 / 9,993 eligible

Evidence Coverage

95.28%

9,886 complete cases

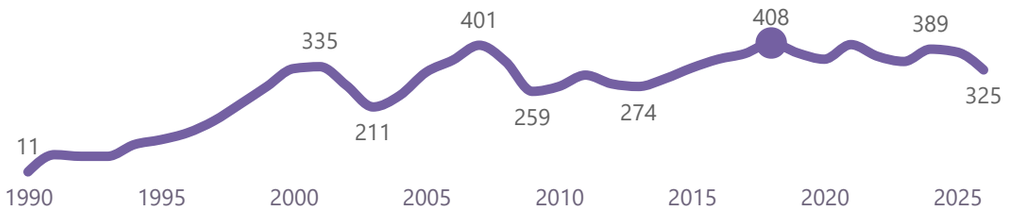
Regulatory Outcome Composition

9,968 eligible cases



Merger Notification Trend

2018 peak · 408 cases



Executive Reading

Phase I unconditional clearance dominates classifiable regulatory outcomes.

2026 is a partial reporting year.

Eligibility rules differ by KPI.

REGULATORY REVIEW PATHWAYS & DECISIONS

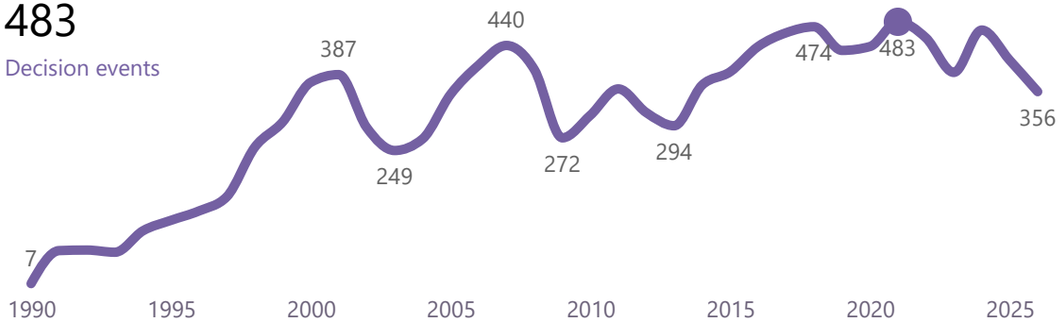
Historical decision events, observed durations and case histories

Decision Events	Cases With Decisions	Phase II Initiations
11,579	10,337	309

Historical Decision Activity

Peak · 2021

483
Decision events



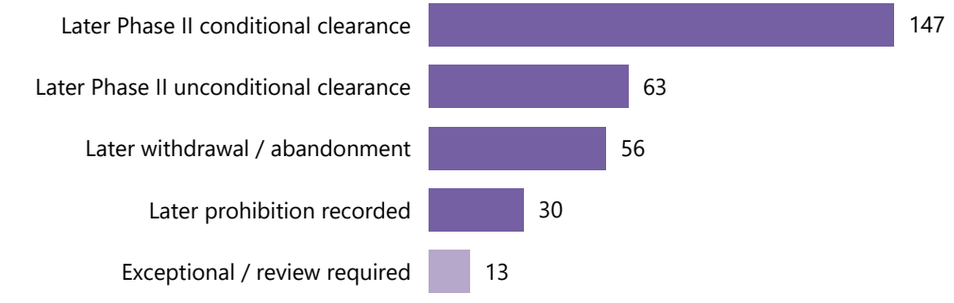
Observed Review Durations



142-day difference between group medians · Calendar days

Phase II Subsequent Pathways

309 cases



Case-History Audit

296 — **Without pathway-audit flags**
95.79% of recorded Phase II cases

13 — **Exceptional histories**
Review required · 4.21%

Audit checks assess reconstructed event sequences, not independently verified final legal outcomes.

M&A INTELLIGENCE TERMINAL

Sector exposure · Conditional clearances · Adjusted statistical evidence

Eligible Cleared Cases
9,602

Conditional Clearance
485

Clearance Rate
5.05%

SECTOR COMPARISON
51
Each with ≥50 eligible clearances

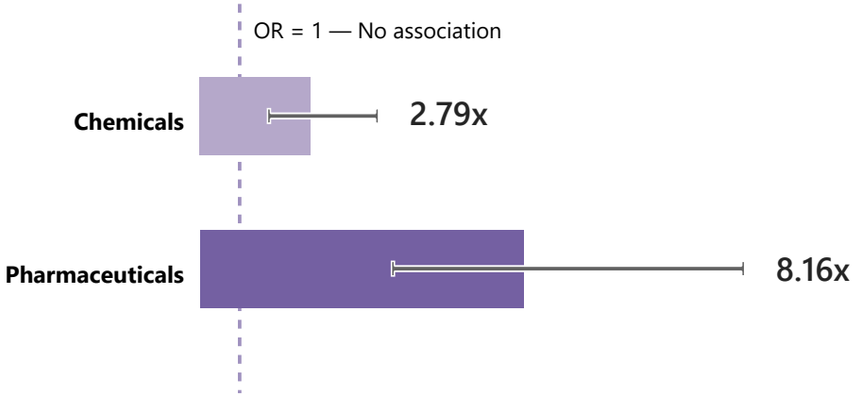
Sector Conditional Clearance Analysis

51 qualifying sector codes · ≥50 eligible clearances per code · Ranked by clearance rate

Sector	Eligible	Conditional	Rate
C.21.20 - Manufacture of pharmaceutical preparations	58	13	22.41%
C.21 - Manufacture of basic pharmaceutical products and pharmaceutical preparations	90	20	22.22%
C.32.5 - Manufacture of medical and dental instruments and supplies	56	11	19.64%
C.30.3 - Manufacture of air and spacecraft and related machinery	65	11	16.92%
C.20 - Manufacture of chemicals and chemical products	227	34	14.98%
C.10 - Manufacture of food products	78	9	11.54%
D.35.2 - Manufacture of gas; distribution of gaseous fuels through mains	97	10	10.31%

Adjusted Sector Associations

Adjusted odds ratios · 95% confidence intervals



Evidence & Comparability

51 sector codes meet the ≥50-case threshold; sector memberships can overlap.

The adjusted model covers 9,390 cases. Associations are not deal-level predictions.

M&A Diligence Implications

Prioritise market-overlap analysis, remedy precedents and Phase II timing contingencies when screening proposed acquisitions.

Proposed diligence priorities · Not implemented

REGULATORY DILIGENCE & DEAL STRATEGY

From historical merger-control evidence to actionable deal preparation

PROPOSED DECISION POSITION

Prioritise transaction-specific regulatory diligence before relying on historical clearance patterns to inform deal planning.

01 · SCREEN

Establish filing exposure

Map transaction parties, ownership and control. Screen EU and national filing requirements, with jurisdictional conclusions to be verified by competition counsel.

EXPECTED OUTPUT
Filing and jurisdiction assessment

02 · ASSESS

Investigate competition concerns

Evaluate market overlaps, competitive effects and relevant Commission precedents. Identify potential remedy scenarios requiring specialist review.

EXPECTED OUTPUT
Competition concerns register

03 · PLAN

Prepare deal contingencies

Build a regulatory workplan, allow for potential in-depth review and remedy commitments, and define transaction decision gates.

EXPECTED OUTPUT
Regulatory readiness plan

Evidence Behind the Recommendations

Recorded Phase II initiation — **3.09%**
309 initiations among 9,993 eligible cases.

Phase I / II median observed intervals — **31d / 173d**
Calendar days; 9,471 Phase I and 237 Phase II timing-eligible cases.

Conditional clearance among eligible clearances — **5.05%**
489 conditional clearances among 9,678 eligible cleared cases.

Decision Boundaries

01 - Historical results do not predict an individual transaction's regulatory outcome.

02 - Observed calendar-day intervals are not statutory review deadlines.

03 - Filing obligations and potential remedies require case-specific legal review.

PROPOSED WORKPLAN · NOT IMPLEMENTED